

An Act

ENROLLED HOUSE
BILL NO. 4051

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

An Act relating to the Oklahoma Health Care Authority; amending 63 O.S. 2021, Section 5020A, as amended by Section 1, Chapter 468, O.S.L. 2025 (63 O.S. Supp. 2025, Section 5020A), which relates to the Rate Preservation Fund; modifying and limiting authorized uses of funds; and declaring an emergency.

SUBJECT: Oklahoma Health Care Authority

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 5020A, as amended by Section 1, Chapter 468, O.S.L. 2025 (63 O.S. Supp. 2025, Section 5020A), is amended to read as follows:

Section 5020A. A. There is hereby created in the State Treasury a fund for the Oklahoma Health Care Authority to be designated the "Rate Preservation Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of monies designated to the fund by law. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Authority for the sole purpose of maintaining reimbursement rates to providers purposes described in subsection B of this section. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment. The Administrator of the Authority may request the Director of the

Office of Management and Enterprise Services to transfer monies between the Rate Preservation Fund and any other fund of the Authority as needed for the expenditure of funds.

B. The Oklahoma Health Care Authority is authorized to budget and expend monies from the Rate Preservation Fund as follows:

1. ~~For~~ Only as directed annually by enacted legislation directing the scope of such utilization, for maintaining reimbursement rates to providers in the event of a decrease in the state's Federal Medical Assistance Percentage rate; and

2. Subject to the approval of the Director of the Office of Management and Enterprise Services, the Oklahoma Health Care Authority may transfer up to one-third (1/3) of the balance of the Rate Preservation Fund in any given state fiscal year to other funds of the Authority to meet cash flow needs of the state's Medicaid program, so long as the monies are transferred back to the Rate Preservation Fund prior to the end of the state fiscal year in which they were originally transferred.

SECTION 2. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 14th day of April, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 16th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____